



Province of Alberta

INCOME AND EMPLOYMENT SUPPORTS ACT

CHILD AND ADULT SUPPORT SERVICES REGULATION

Alberta Regulation 61/2004

With amendments up to and including Alberta Regulation 158/2025

Current as of June 25, 2025

Office Consolidation

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(Consolidated up to 158/2025)

ALBERTA REGULATION 61/2004

Income and Employment Supports Act

CHILD AND ADULT SUPPORT SERVICES REGULATION

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Assistance

- 1** The *Social Development Act* is specified as an enactment for the purposes of section 28(a) of the Act.

Notices

- 2(1)** When the Director exercises an authority under section 29(3) of the Act, except under clauses (f) and (g), the Director must provide notice in any manner, including orally, that in the opinion of the Director is likely to bring the matter to the attention of the person who is or may be entitled to support.
- (2)** Notice for the purpose of section 29(3)(f) of the Act must be in writing.
- (3)** Notice is not required for the purpose of section 29(3)(g) of the Act.
- (4)** Where a notice under this section is made in writing, the notice may be sent by ordinary mail to the last known address of the person according to the records of the Department of Assisted Living and Social Services.

AR 61/2004 s2;35/2007;68/2008;31/2012;216/2022;
158/2025

When rights may be exercised under section 29

- 3(1)** Section 29(6)(a) of the Act does not prevent a person in receipt of assistance from

- (a) initiating or responding to a proceeding under the *Divorce Act* (Canada), or
- (b) initiating or responding to an application for variation for arrears owing to the person for any period during which the person was not in receipt of assistance,

but if the proceeding or application involves the person taking steps referred to in section 29(3) of the Act, the person must notify the Director within 2 days of initiating or receiving notice of the proceeding or application.

(2) A person who

- (a) has taken steps referred to in section 29(3) of the Act and subsequently becomes in receipt of assistance, or
- (b) is in receipt of assistance

may, on notification to the Director, on receipt of the consent of the Director and subject to any conditions imposed by the Director, continue or initiate any steps referred to in section 29(3) of the Act.

(3) Where a person has initiated or responded to an application or proceeding referred to in subsection (1)(a) and for that purpose the person is taking any of the steps referred to in section 29(3) of the Act, the Director may, at any time, exercise any authority under section 29(3) of the Act.

(4) The Director may, at any time,

- (a) despite subsection (2), exercise any authority under section 29(3) of the Act, or
- (b) withdraw his or her consent given under subsection (2).

Acting under section 30

4(1) In this section, “suitable case” means that, in the opinion of the Director, after having completed an assessment of information made available to the Director by the applicant, the provision of service is appropriate.

(2) Subject to subsection (3), the Director may act under section 30 of the Act with respect to a person not receiving assistance under the Act only if, in the opinion of the Director,

- (a) the person has insufficient financial resources to enable the person to make an application for determination of paternity or support or both, and
- (b) the matter is a suitable case.

(3) If the Director

- (a) has acted under section 29 of the Act with respect to a person, or
- (b) has acted with respect to a person who had previously qualified under subsection (2)

and the Director is no longer doing so, the Director may take such action under section 30 as is necessary for the efficient transfer of the control of the matter to the person or that person's legal counsel, including the transfer of information that has been collected for the conduct of the matter.

AR 61/2004 s4;126/2006

Additional steps

5(1) For the purposes of sections 29(3)(i) and 30(1)(e) of the Act, the Director may take, but is not limited to, the following steps:

- (a) undertake investigations or otherwise make inquiries in order to
 - (i) determine the whereabouts of a person who is or may be responsible to pay support, or
 - (ii) acquire information about a person who is or may be responsible to pay support that is necessary to obtain or enforce support orders or agreements

and during the course of the investigation or inquiries, disclose only such information as is necessary to identify the person who may be responsible for support;

- (b) give each party information that is necessary to take action under sections 29 and 30;
- (c) refer persons to specified DNA testers for the purpose of determining parentage;
- (d) for the purposes of sections 29 and 30 of the Act, appear and make representations in court.

(2) The Director may collect and use the information obtained under subsection (1) to the extent necessary to act under sections 29(3)(i) and 30(1)(e).

Costs

6 Costs against the Crown in right of Alberta with respect to proceedings under Part 5 of the Act are limited to the reimbursement of DNA testing costs paid by a respondent when

- (a) the results of the testing determine that the respondent is not the person responsible for child support, and
- (b) the respondent has requested reimbursement.

AR 61/2004 s6;128/2007

7 Repealed AR 34/2010 s2.

8 Repealed AR 230/2017 s1.

Coming into force

9 This Regulation comes into force on April 1, 2004.



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